

		the parties to address and respond to the above issues. See <i>also</i> Department CX104 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
4	Clark, et al. v. Windsail Capital Group, LLC, et al. 2021-01191735	<u>Defendants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand and Matthew T. O'Rourke's Motion to Seal</u> Defendants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand and Matthew T. O'Rourke move to seal an exhibit lodged conditionally under seal in connection with plaintiff GrowthPoint Global Inc.'s motions to compel responses to a request for production and to special interrogatories. For the following reasons, defendants' unopposed motion is granted. The sealed document rules in California Rules of Court 2.550 and 2.551 do not apply to "discovery motions and records filed or lodged in connection with discovery motions or proceedings." Cal. R. Ct. 2.550(a)(3). The exhibit defendants seek to seal was lodged in connection with discovery motions, and defendants designated the document confidential pursuant to the parties' Partial Stipulation and Protective Order (filed 11/14/22, ROA 1073). This showing is sufficient to grant defendants' motion to seal. The following document is ordered sealed: Exhibit 18 to the Supplemental Vu Declaration (ROA 2360) in support of Plaintiff GrowthPoint Global Inc.'s Motions to Compel Responses from Crate Modular, Inc. to Request for Production of Documents No. 91 and to Second Set of Special Interrogatories and from Windsail Entities to Fourth Set of Special Interrogatories. Defendants to give notice.
5	Diaz, et al. v. Express Services, Inc., et al. 2019-01049858	<u>Plaintiffs' Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for

		final approval of a \$920,000 class action and PAGA settlement. Subject to plaintiffs' submission of the documents identified below, the court grants the motion as follows: \$15,000.00 for plaintiffs' enhancement awards (\$7,500 for each plaintiff); \$306,666.66 for attorneys' fees; \$17,483.89 for litigation costs (see discussion below); \$9,250.00 for settlement administration fees and costs; and \$50,000.00 total PAGA penalties (\$37,500.00 to the LWDA). In its December 5, 2024 order (ROA 376), the court stated: "Aegis Law Firm, PC must submit invoices substantiating the mediation charges, the Berger Consulting Group charges, the Evidentia Consulting charges, the 'administrative filing fee' charges, and the courier charges. . . . The charges for parking, travel/mileage, postage and 'cumulative copies, faxes, scans, postage' should be removed. See Civ. Proc. Code § 1033.5(b)." 12/5/24 Order (ROA 376) ¶ 11. Exhibit 3 to the Supplemental Toscano Declaration (ROA 384) includes charges for parking (\$3.00), travel (\$16.52), postage (\$0.50) and a Berger Consulting Group charge (\$1,147.50) for which an invoice has not been submitted. The court has deducted these amounts from the requested litigation costs award. Plaintiffs are ordered to file and serve by <u>April 24, 2025</u> (i) a supplemental declaration from the settlement administrator executed in April 2025 addressing Item Nos. 2 and 3 in the December 5, 2024 order (ROA 376) (the Supplemental Pikus Declaration (Ex. 2 to ROA 380) is dated March 11, 2024); and (ii) a declaration from defendants addressing Item No. 4 as ordered in the court's December 5, 2024 order (ROA 376). The final accounting hearing is scheduled for <u>April 16, 2026 at 9:00 a.m.</u> in Department CX104. Plaintiffs are ordered to file a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
6	Gonzalez-Castanon v. Alpha Tile & Stone, Inc., et al. 2024-01374472	Off calendar.
7	Ortega-Rabanales, et al. v. AKG Trading (USA), Inc., et al.	Off calendar.